

**BEFORE THE
FEDERAL MARITIME COMMISSION**



Globerunners, Incorporated

Complainant,

v.

Docket No. 22-27

Hoyer Global (USA), Inc.,

Respondent

VERIFIED COMPLAINT

INTRODUCTION

1. Complainant Globerunners, Incorporated (“GRI” or “Complainant”) by its attorneys at Husch Blackwell LLP brings this Verified Complaint against Hoyer Global (USA), Inc. (“Hoyer” or “Respondent”) pursuant to violations of the Shipping Act of 2022 (“the Shipping Act”), 46 U.S.C. § 41104(a)(14); 46 USC §§41102(c) or 46 C.F.R. §545; and/or 46 CFR§ 532.5 (d)(2) by Hoyer, and pursuant to the Federal Maritime Commission’s (“FMC[’s]”) authority to permit the filing of complaints under Section 11(a) of the Shipping Act, 46 U.S.C. § 41301(a), in response to Respondent’s violations of the Shipping Act.

2. Complainant alleges upon information and belief the following:

PARTIES AND OTHER ENTITIES

3. Complainant GRI is a corporation organized and existing under the laws of the State of California, with its principal place of business at 3400 Douglas Boulevard, Suite 140, Roseville, CA 95661.

4. Complainant GRI is a non-vessel-operating common carrier (“NVOCC”) as that term is defined at 46 U.S. Code § 40102 (17) that provides transport, logistics and related shipping services to customers in the United States and worldwide. GRI is licensed by the FMC as an NVOCC, i.e., as an Ocean Transportation Intermediary (“OTI”), under license no. 020951,

pursuant to 46 C.F.R. Part 515 of the Federal Maritime Commission (the “Commission”) Regulations.

5. Respondent Hoyer is a corporation organized and existing under the laws of Texas with its principal place of business at 2100 Space Park Drive, Houston, Texas.

6. Hoyer is also a non-vessel ocean common carrier licensed by the Federal Maritime Commission as that term is defined at 46 U.S. Code § 40102 (17).

7. K&C Logistics Co., Ltd. (“K&C”), Room 212, Donghwa Building, #122-8, Nonhyun-Dong, Gangnam-Gu, Seoul 135-10, Korea, is Hoyer’s agent in Korea, and the entity that is indicated as consignee on the ocean carrier’s bill of lading.

8. K&C and Hoyer are noted as Merchant in the ocean carrier’s bill of lading terms and as jointly and severally liable for charges such as demurrage and storage.

JURISDICTION

8. The FMC has subject matter jurisdiction over this action pursuant to the Shipping Act of 2022, 46 U.S.C. § 40101 *et seq.*

9. The FMC has personal jurisdiction over Respondent Hoyer as a non-vessel operating ocean common carrier as that term is defined at 46 U.S. Code § 40102 (17).

MEMORANDUM OF THE FACTS

10. In January 2019, Globerunners arranged to ship certain cargo with Hoyer by sea aboard the M/V Northern Jasper from Charleston, South Carolina, USA to Busan, Republic of Korea.

11. The Hoyer-issued bill of lading described the cargo as 8 tank containers containing petroleum products. See Exhibit 1, copy of Hoyer bill of lading.

12. The containers were shipped to Busan. Through no fault of Globerunners, the containers then could not be picked up by the buyer or were not picked up by the buyer. The containers remained on the wharf in Busan until May 2022.

13. Hoyer sued Globerunners in the United States District Court for the Southern District of Texas, Houston Division, alleging that Globerunners is liable for wharfage that Hoyer had to pay to the port in Busan, and for demurrage.

14. Globerunners does not dispute that it is liable for the amount that Hoyer paid to the port in Busan for wharfage. However, Globerunners contends that the maximum amount of wharfage that Hoyer can pass through is the amount that Hoyer or its agent K&C paid to the port for wharfage. Hoyer has failed or refused to provide Globerunners with proof of the amounts paid by Hoyer or its agent K&C to the terminal in Busan.

CAUSES OF ACTION

COUNT I: VIOLATIONS OF 46 U.S.C. §41104 (a)(14); 46 U.S.C. §41102 (c) and 46 CFR§ 532.5 (d)(2)(iv)

15. Complainant GRI incorporates by reference each of the facts and allegations stated in paragraphs 1 through 14 as though set forth herein.

16. 46 U.S.C. §41104 (a)(14) prohibits Hoyer as "[a] common carrier, either alone or in conjunction with any other person, directly or indirectly . . . [to] assess any party for a charge that is inconsistent or does not comply with all applicable provisions and regulations, including subsection (c) of section 41102 or part 545 of title 46, Code of Federal Regulations (or successor regulations)

17. 46 CFR§ 532.5 (d)(2)(iv) requires that Hoyer pass through to GRI, as an NVOCC which has utilized an NVOCC rate arrangement ("NRA") in a shipping transaction, as it has in this transaction with GRI, accessorial charges it claims have been assessed to it by an underlying ocean common carrier or marine terminal, which charge(s) it has not included in the NRA or in Hoyer's rules tariff. The regulation requires that the pass through of this accessorial charge to GRI be accomplished under the following additional conditions, among others:

(2) (iv) For any pass-through charge for which a specific amount is not included in the NRA or the rules tariff, the NVOCC may only invoice the shipper for charges the NVOCC incurs, with no markup.

Despite repeated requests, Hoyer and/or its agent K&C has continuously refused to provide proof of the actual amount paid to the underlying ocean carrier or marine terminal for wharfage.

18. Respondent, has also unreasonably and continuously refused to provide to GRI proof of the actual amount paid to the ocean common carrier and/or the terminal for storage and/or demurrage or wharfage, after repeated requests by GRI in violation of 46 U.S.C. §41102 (c) which prohibits Hoyer from failing “to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.”

19. GRI hereby claims that it is inherent in interpreting the language of 46 CFR§ 532.5 (d)(2)(iv), to attribute to it any measure of meaning, that the regulation requires the party which is attempting to collect on a pass-through charge pursuant to the aforementioned laws and regulations to provide to the party from whom it is passing on the charge---i.e., GRI, not only a true copy of the invoice which is the subject of the pass through but also proof of the actual amount paid. Here, the demurrage and storage and/or wharfage charges in question are those issued by the ocean common carrier and/or the terminal operator to K&C, Hoyer’s agent. To not interpret that obligation in this manner would render this regulation meaningless in terms of how a party receiving the pass through is to perceive whether it has been marked up or not---i.e., whether or not such charges are lawful charges or not. It would render this regulation meaningless if this requirement is not interpreted as part of the subject regulation.

INJURY TO BE SUFFERED BY GRI

20. GRI, to the extent that the amount that Hoyer or its agent is claiming to have paid to satisfy the demurrage and storage and/or wharfage amounts claimed by the ocean common carrier and/or terminal, and is hereby charging GRI, exceeds the actual amount which Hoyer or its agent were actually charged and paid the ocean carrier and/or terminal for demurrage/storage is the measure of possible damages to GRI.

PRAYER FOR RELIEF

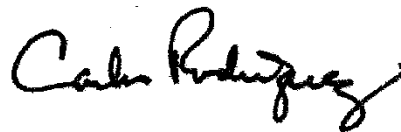
WHEREFORE, GRI respectfully prays for relief from the Commission as follows:

1. An Order compelling Respondent to answer the charges made herein and scheduling a hearing in Washington D.C. during which the Commission may receive evidence in this matter;

2. An Order, after due investigation and hearing, finding Respondent to have violated 46 U.S.C. §41104 (a)(14); 46 U.S.C. §41102 (c) and/or 46 CFR§ 532.5 (d)(2)(iv));
3. An Order compelling Respondent to cease and desist from refusing to provide to GRI proof of the actual amount of demurrage, storage and/or wharfage paid to the underlying ocean common carrier and/or storage by either itself or by its agent, which it is claiming from GRI.
4. An Order compelling Respondent, that to the extent that amounts paid by Hoyer and/or its agent to the underlying ocean carrier and/or the operator for demurrage, storage and/or wharfage exceeds the amounts Hoyer seeks to charge GRI, that Hoyer cease and desist from the collection of those marked up unlawful amounts from GRI;
5. Such other and further relief as the FMC determines to be just and proper, including attorney's fees.

Dated: September 30, 2022

Respectfully Submitted:



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Counsel for Complainant, Globerunners, Inc.

VERIFICATION

Mr. Keith Kuball, President of Globerunners, Incorporated pursuant to 28 USC § 1746, the undersigned hereby declares under penalty of perjury that he has read the foregoing Verified Complaint, and that the facts stated therein to the best of his knowledge, information and belief further declares that the foregoing is true and correct on information, belief, and upon information received from others.

Dated: September 30, 2022

Keith Kuball, President
Globerunners, Inc.
5927 Priestly Drive, Suite 103
Carlsbad, CA 92008
Direct (760) 710-2525
E-mail: keith@grunners.com

EXHIBIT – 1

HOYER GLOBAL (USA) INC. BILL OF LADING

COMBINED TRANSPORT BILL OF LADING

Revised 1995

Code Name: "COMBICONBILL"

HOYER
 GLOBAL TRANSPORT

Carrier:

HOYER Global (USA) Inc., Principal place of business, 2100 Space Park Drive, Suite 200, Houston, Texas, 77058, USA
FMC licence number 019843N

Shipper (complete name and address) GLOBERUNNERS INC. FMC NO. 020951NF EIN: 20-3620458 5927 PRIESTLY DRIVE, SUITE 103 CARLSBAD, CA 92008-8800 USA Tel. 760-710-2555 / Fax. 760-710-2522		Bill of Lading no. 1079763	Reference no. 01142519-01 / GLR513828-01
		Export references SCCS365860	
Consignee (complete name and address) WELLTRANS INT'L LOGISTICS CO., LTD ROOM 904, DONG-A JEIL BLDG, 37-16, 4 GA, CHUNG ANG-DONG, CHUNG-GU BUSAN S.KOREA, REPUBLIC OF Tel. 82-51-466-0755 / Fax 82-51-466-0744		Forwarding agent, F.M.C. no.	
		Point and country of origin of goods	
Notify party (It is not agreed that no responsibility shall attach to the carrier or his agent for failure to notify of the arrival of the goods.) SIRIUS GLOBAL LOGISTICS CO LTD USCI: USC191370202MA3C94J71K 38TH FLOOR, FLAGSHIP TOWER, CYBER PORT, 40 HONGKONG MIDDLE ROAD QINGDAO, 266071, P.R. CHINA Tel. 86-532-80971789		Routing instructions / Terms of delivery Door to Pier From SANFORD NC, USA To PUSAN (BUSAN), S.KOREA, REPUBLIC OF	
Place of receipt by precarrier* SANFORD NC		For delivery please apply to K&C LOGISTICS CO LTD, ROOM 212, DONGHWA BUILDING, #122-8, NONHYUN-DONG, GANGNAM-GU, SEOUL 135-010 KOREA, S.KOREA, REPUBLIC OF Tel. +0082 25184706, Fax +0082 25184709	
Vessel NORTHERN JASPER	Voy. 002W	Port of loading CHARLESTON SC, USA	Emergency response information CHEMTREC USA 703 527 3887 (24-hour number)
Port of discharge PUSAN (BUSAN), S.KOREA, REPUBLIC OF	Place of delivery by oncarrier*		Freight payable at ORIGIN
		Number of original Bills of Lading Express	
Marks and Nos.		Quantity and description of goods 8 x 20' TANK CONTAINER S.T.C. EQUIP. ID. SEAL NO. PRODUCT DETAILS HGTU2414379 23042108/23042110/23042111 C5 ASPHALTENE (PETROLEUM) C5 HGTU2415354 23042133/23042134/23042135 MALTENES HOTU1405105 23042114/23042112/23042113 Refined Oil HGTU9611111 23042116/23042115/23042117 Non Hazardous TNOU2413540 23042126/23042125/23042124 HGTU2419750 23042122/23042121/23042123 HOYU9655606 23042139/23042140/23042141 TCLU9019659 23042120/23042119/23042118 AES: X20190121486243 REFINED OIL FREIGHT PREPAID 8 TANK CONTAINERS SHIPPER'S STOW, LOAD AND COUNT ON BOARD DATE: 26-Jan-2019	
		Gross weight, kg, measurement m³ GROSS PRODUCT WEIGHT CONTAINER TARE WEIGHT 19,800.00 Kgs 3560 Kgs 19,800.00 Kgs 3560 Kgs 19,800.00 Kgs 3450 Kgs 19,800.00 Kgs 3630 Kgs 19,800.00 Kgs 3700 Kgs 19,800.00 Kgs 3700 Kgs 19,800.00 Kgs 3900 Kgs 19,800.00 Kgs 3740 Kgs	

These commodities, technology, or software were exported from the United States in accordance with the export administration regulations diversion contrary to U.S. Law prohibited.

Particulars above declared by Shipper

Container units hauled or handled by contractors not authorised by Hoyer Global Transport BV or its offices or agents will be responsible for any damage sustained whilst in the unauthorised contractors care.

Freight and charges

FREIGHT : Prepaid
 THC POL : Included
 THC POD : Collect

Demurrage at destination will start 7 days from arrival date of container
 Demurrage rate is USD 55 per day*

Shipper's declared value of
 subject to payment of above extra charge.

Note:
 The Merchant's attention is called to the fact that according to Clauses 10 to 12 and Clause 24 of this Bill of Lading, the liability of the Carrier is, in most cases, limited in respect of or damage to the goods and delay.

*Applicable only when used for multimodal transportation.

RECEIVED the goods in apparent good order and condition and, as far as ascertained by reasonable means of checking, as specified above unless otherwise stated.

The Carrier, in accordance with and to the extent of the provisions contained in this Bill of Lading, and with liberty to sub-contract, undertakes to perform and/or in his own name to procure performance of this combined transport and the delivery of the goods, including all services related thereto, from the place and time of taking the goods in charge to the place and time of delivery and accepts responsibility for such transport and such services.

One of the Bills of Lading must be surrendered duly endorsed in exchange for the goods or delivery order.

IN WITNESS whereof THREE (3) original Bills of Lading have been signed, if not otherwise stated above, one of which being accomplished the other(s) to be void.

Place and date of issue
 HOUSTON TX, 26 January 2019

Signed for

by HOYER Global (USA) Inc.
 As agent(s) only to the Carrier

as Carrier

HO1

p.t.o.

COMBINED TRANSPORT BILL OF LADING

Adopted by The Baltic and International Maritime Council in January, 1971 (as revised 1995)

Code Name: "COMBICONBILL"

I. GENERAL PROVISIONS

1. Applicability
Notwithstanding the heading "Combined Transport" the provisions set out and referred to this Bill of Lading shall also apply, if the transport as described in this Bill of Lading is performed by one mode of transport only.
2. Definitions
"Carrier" means the party on whose behalf this Bill of Lading has been signed.
"Merchant" includes the Shipper, the Receiver, the Consignor, the Consignee, the holder of this Bill of Lading and the owner of the goods.
3. Carrier's Tariff
The terms of the Carrier's applicable Tariff at the date of shipment are incorporated herein. Copies of the relevant provisions of the applicable Tariff are available from the Carrier upon request. In the case of inconsistency between this Bill of Lading and the applicable Tariff, this Bill of Lading shall prevail.
4. Time Bar
All liability whatsoever of the Carrier shall cease unless suit is brought within 9 months after delivery of the goods or the date when the goods should have been delivered.
5. Law and Jurisdiction
Any claim or dispute arising under this bill of lading shall be governed by Dutch law and determined by the District of Court of Rotterdam to the exclusion of the Courts of any other place.

II. PERFORMANCE OF THE CONTRACT

6. Methods and Routes of Transportation
(1) The Carrier is entitled to perform the transport and all services related thereto in any reasonable manner and by any reasonable means, methods and routes.
(2) In accordance herewith, for instance, in the event of carriage by sea, vessels may sail with or without pilots, undergo repairs, adjust equipment, drydock and tow vessels in all situations.
7. Optional Stowage
(1) Goods may be stowed by the Carrier by means of containers, trailers, transportable tanks, flats, pallets, or similar articles of transport used to consolidate goods.
(2) Containers, trailers, transportable tanks and covered flats, whether stowed by the Carrier or received by him in a stowed condition from the Merchant, may be carried on or under deck without notice to the Merchant.
8. Hindrances etc. Affecting Performance
(1) The Carrier shall use reasonable endeavours to complete the transport and to deliver the goods at the place designated for delivery.
(2) If at any time the performance of the contract as evidenced by this Bill of Lading is or will be affected by any hindrance, risk, delay, difficulty or disadvantage of whatsoever kind, and if by virtue of sub-clause 8 (1) the Carrier has no duty to complete the performance of the contract, the Carrier (whether or not the transport is commenced) may elect to:
(a) treat the performance of this Contract as terminated and place the goods at the Merchant's disposal at any place which the Carrier shall deem safe and convenient; or
(b) deliver the goods at the place designated for delivery.
(3) If the goods are not taken delivery of by the Merchant within a reasonable time after the Carrier has called upon him to take delivery, the Carrier shall be at liberty to put the goods in safe custody on behalf of the Merchant at the latter's risk and expense.
(4) In any event the Carrier shall be entitled to full freight for goods received for transportation and additional compensation for extra costs resulting from the circumstances referred to above.

III. CARRIER'S LIABILITY

9. Basic Liability
(1) The Carrier shall be liable for loss or damage to the goods occurring between the time when he receives the goods into his charge and the time of delivery.
(2) The Carrier shall be responsible for the acts and omissions of any person of whose services he makes use for the performance of the contract of carriage evidenced by this Bill of Lading.
(3) The Carrier shall, however, be relieved of liability for any loss or damage if such loss or damage arose or resulted from:
(a) The wrongful act or neglect of the Merchant.
(b) Compliance with the instructions of the person entitled to give them.
(c) The lack of, or defective conditions of packing in the case of goods which, by their nature are liable to wastage or to be damaged when not packed or when not properly packed.
(d) Handling, loading, stowage or unloading of the goods by or on behalf of the Merchant.
(e) Inherent vice of the goods.
(f) Insufficiency or inadequacy of marks or numbers on the goods, covering, or unit loads.
(g) Strikes or lock-outs or stoppages or restraints of labour from whatever cause whether partial or general.
(h) Any cause or event which the Carrier could not avoid and the consequence whereof the could not prevent by the exercise of reasonable diligence.
(4) Where under sub-clause 9 (3) the Carrier is not under any liability in respect of some of the factors causing the loss or damage, he shall only be liable to the extent that those factors for which he is liable under this Clause have contributed to the loss or damage.
(5) The burden of proving that the loss or damage was due to one or more of the causes or events, specified in (a), (b) and (h) of sub-clause 9 (3) shall rest upon the Carrier.
(6) When the Carrier establishes that in the circumstances of the case, the loss or damage could be attributed to one or more of the causes or events, specified in (c) to (g) of sub-clause 9 (3), it shall be presumed that it was so caused. The Merchant shall, however, be entitled to prove that the loss or damage was not, in fact, caused either wholly or partly by one or more of the causes or events.
10. Amount of Compensation
(1) When the Carrier is liable for compensation in respect of

- loss of or damage to the goods, such compensation shall be calculated by reference to the value of such goods at the place and time they are delivered to the Merchant in accordance with the contract or should have been so delivered.
- (2) The value of the goods shall be fixed according to the commodity exchange price or, if there be no such price, according to the current market price or, if there be no commodity exchange price or current market price, by reference to the normal value of goods of the same kind and quality.
- (3) Compensation shall not, however, exceed two Special Drawing Rights per kilogramme of gross weight of the goods lost or damaged.
- (4) Higher compensation may be claimed only when, with the consent of the Carrier, the value for the goods declared by the Shipper which exceeds the limits laid down in this Clause has been stated on the face of this Bill of Lading at the place indicated. In that case the amount of the declared value shall be substituted for that limit.
11. Special Provisions for Liability and Compensation
(1) Notwithstanding anything provided for in Clauses 9 and 10 of this Bill of Lading, if it can be proved where the loss or damage occurred, the Carrier and the Merchant shall, as to the liability of the Carrier, be entitled to require such liability to be determined by the provisions contained in any international convention or national law, which provisions:
(a) cannot be departed from by private contract, to the detriment of the claimant, and
(b) would have applied if the Merchant had made a separate and direct contract with the Carrier in respect of the particular stage of transport where the loss or damage occurred and received as evidence thereof any particular document which must be issued if such international convention or national law shall apply.
(2) Insofar as there is no mandatory law applying to carriage by sea by virtue of the provisions of sub-clauses 11(1), the liability of the Carrier in respect of any carriage by sea shall be determined by the International Brussels Convention 1924 as amended by the Protocol signed at Brussels on February 23rd 1968 - The Hague/Visby Rules. The Hague/Visby Rules shall also determine the liability of the Carrier in respect of carriage by inland waterways as if such carriage were carriage by sea. Furthermore, they shall apply to all goods, whether carried on deck or under deck.
12. Delay, Consequential Loss, etc.
If the Carrier is held liable in respect of delay, consequential loss or damage other than loss of or damage to the goods, the liability of the Carrier shall be limited to the freight for the transport covered by this Bill of Lading, or to the value of the goods as determined in Clause 10, whichever is the lesser.
13. Notice of Loss of or Damage to the Goods
(1) Unless notice of loss of or damage to the goods, specifying the general nature of such loss or damage, is given in writing by the Merchant to the Carrier when the goods are handed over to the Merchant, such handing over is *prima facie* evidence of the Delivery by the Carrier of the goods described in this Bill of Lading.
(2) Where the loss or damage is not apparent, the same *prima facie* effect shall apply if notice in writing is not given within three (3) consecutive days after the day when the goods were handed over to the Merchant.
14. Defences and Limits for the Carrier, Servants, etc.
(1) The defences and limits of liability provided for in this Bill of Lading shall apply in any action against the Carrier for loss or damage to the goods whether the action can be founded in contract or in tort.
(2) The Carrier shall not be entitled to the benefit of the limitation of liability provided for in sub-clause 10 (3), if it is proved that the loss or damage resulted from a personal act or omission of the Carrier done with intent to cause such loss or damage or recklessly and with knowledge that damage would probably result.
(3) The Merchant undertakes that no claim shall be made against any servant, agent or other persons whose services the Carrier had used in order to perform this Contract and if any claim should nevertheless be made, to indemnify the Carrier against all consequences thereof.
(4) However, the provisions of this Bill of Lading apply whenever claims, relating to the performance of this Contract are made against any servant, agent or other person whose services the Carrier has used in order to perform this Contract, whether such claims are founded in contract or in tort. In entering into this Contract, the Carrier, to the extent of such provisions, does so not only on his own behalf but also as agent or trustee for such persons. The aggregate liability of the Carrier and such persons shall not exceed the limits in Clauses 10, 11 and 24, respectively.
- IV. DESCRIPTION OF GOODS
15. Carrier's Responsibility
The information in this Bill of Lading shall be *prima facie* evidence of the taking in charge by the Carrier of the goods as described by such information unless a contrary indication, such as "shipper's weight, load and count", "Shipper-packed container" or similar expressions, have been made in the printed text or superimposed on the Bill of Lading. Proof to the contrary shall not be admissible when the Bill of Lading has been transferred, or the equivalent electronic data interchange message has been transmitted to and acknowledged by the Consignee who in good faith has relied and acted thereon.
16. Shipper's Responsibility
The Shipper shall be deemed to have guaranteed to the Carrier the accuracy, at the time the goods were taken in charge by the Carrier, of the description of the goods, marks, number, quantity and weight, as furnished by him, and the Shipper shall defend, indemnify and hold harmless the Carrier against all loss, damage and expenses arising or resulting from inaccuracies in or inadequacy of such particulars. The right of the Carrier to such indemnity shall in no way limit his responsibility and liability under this Bill of Lading to any person other than the Shipper. The Shipper shall remain liable even if the Bill of Lading has been transferred by him.
17. Shipper-packed Containers, etc.
(1) If a container has not been filled, packed or stowed by the Carrier, the Carrier shall not be liable for any loss of or

- damage to its contents and the Merchant shall cover any loss or expense incurred by the Carrier, if such loss, damage or expense has been caused by:
(a) negligent filling, packing or stowing of the container;
(b) the contents being unsuitable for carriage in container; or
(c) the unsuitability or defective condition of the container unless the container has been supplied by the Carrier and the unsuitability or defective condition would not have been apparent upon reasonable inspection at or prior to the time when the container was filled, packed or stowed.
- (2) The provisions of sub-clause (1) of this Clause also apply with respect to trailers, transportable tanks, flats and pallets which have not been filled, packed or stowed by the Carrier.
- (3) The Carrier does not accept liability for damage due to the unsuitability or defective condition of reefer equipment or trailers supplied by the Merchant.
18. Dangerous Goods
(1) The Merchant shall comply with all internationally recognised requirements and all rules which apply according to national law or by reason of international Convention, relating to the carriage of goods of a dangerous nature, and shall in any event inform the Carrier in writing of the exact nature of the danger before goods of a dangerous nature are taken into charge by the Carrier and indicate to him, if need be, the precautions to be taken.
(2) Goods of a dangerous nature which the Carrier did not know were dangerous, may, at any time or place, be unloaded, destroyed, or rendered harmless, without compensation; further, the Merchant shall be liable for all expenses, loss or damage arising out of their handing over for carriage or of their carriage.
(3) If any goods shipped with the knowledge of the Carrier as to their dangerous nature shall become a danger to any person or property, they may in like manner be landed at any place or destroyed or rendered innocuous by the Carrier without liability on the part of the Carrier except to General Average, if any.
19. Return of Containers
(1) For the purpose of this Clause the Consignor shall mean the Person who concludes this Contract with the Carrier and the Consignee shall mean the person entitled to receive the goods from the Carrier.
(2) Tank Containers supplied by or on behalf of the Carrier shall be returned to the Carrier in the same order and condition as handed over to the Merchant, normal wear and tear expected, within the time prescribed in the Carrier's tariff or elsewhere.
(3) (a) The Consignor shall be liable for any loss of, damage to, or delay, including demurrage, of such articles, incurred during the period between handing over to the Consignor and return to the Carrier for carriage.
(b) The Consignor and the Consignee shall be jointly and severally liable for any loss of, damage to, or delay, including demurrage, of such articles, incurred during the period between handing over to the Consignee and return to the Carrier.
- V. FREIGHT AND LIEN
20. Freight
(1) Freight shall be deemed earned when the goods have been taken in charge by the Carrier and shall be paid in any event.
(2) The Merchant's attention is drawn to the stipulations concerning currency in which the freight and charges are to be paid, rate of exchange, devaluation and other contingencies relative to freight and charges in the relevant tariff conditions. If no such stipulation as to devaluation exists or is applicable the following shall apply:
If the currency in which freight and charges are quoted is devalued between the date of the freight agreement and the date when the freight and charges are paid, then all freight and charges shall be automatically and immediately increased in proportion to the extent of the devaluation of the said currency.
(3) For the purpose of verifying the freight basis, the Carrier reserves the right to have the contents of containers, trailers or similar articles of transport inspected in order to ascertain the weight, measurement, value, or nature of the goods.
21. Lien
The Carrier shall have a lien on the goods for any amount due under this Contract and for the costs of recovering the same, and may enforce such lien in any reasonable manner, including sale or disposal of the goods.
- VI. MISCELLANEOUS PROVISIONS
22. General Average
(1) General Average shall be adjusted at any port or place at the Carrier's option, and to be settled according to the York-Antwerp Rules 1994, or any modification thereof, this covering all goods, whether carried on or under deck. The New Jason Clause as approved by BIMCO to be considered as incorporated herein.
(2) Such security including a cash deposit as the Carrier may deem sufficient to cover the estimated contribution of the goods and any salvage and special charges thereon, shall, if required, be submitted to the Carrier prior to delivery of the goods.
23. Both-to-Blame Collision Clause
The Both-to-Blame Collision Clause as adopted by BIMCO shall be considered incorporated herein.
24. U.S. Trade
(1) In case of contract evidenced by this Bill of Lading is subject to the Carriage of Goods by Sea Act of the United States of America, 1936 (U.S. COGSA), then the provisions stated in the said Act shall govern before loading and after discharge and throughout the entire time the goods are in the Carrier's custody.
(2) If the U.S. COGSA applies, and unless the nature and value of the goods have been declared by the shipper before the goods have been handed over to the Carrier and inserted in this Bill of Lading, the Carrier shall in no event be or become liable for any loss of or damage to the goods in an amount exceeding USD 500 per package or customary freight unit.

VERIFICATION

Mr. Keith Kuball, President of Globerunners, Inc. pursuant to 28 USC § 1746, the undersigned hereby declares under penalty of perjury that he has read the foregoing Verified Complaint, and that the facts stated therein to the best of his knowledge, information and belief further declares that the foregoing is true and correct on information, belief, and upon information received from others.

Dated: September 30, 2022

A handwritten signature in blue ink, appearing to read "Keith Kuball", written over a horizontal line.

Keith Kuball, President
Globerunners, Inc.
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Carlsbad, CA 92008
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